IN THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS

UNITED STATES Appellee v. BRIAN D. HOWARD Airman, USAF Appellant	)	**BRIEF ON BEHALF OF APPELLANT** Before Panel No. 1 ACM 40478 (f rev) 29 September 2024

MATTHEW L. BLYTH, Maj, USAFR
Appellate Defense Counsel
Appellate Defense Division (AF/JAJA)
1500 West Perimeter Road, Suite 1100
Joint Base Andrews NAF, MD 20762
(240) 612-4770
matthew.blyth.1@us.af.mil
Counsel for Appellant

Table of Contents

		Page
Assignments of Error		1
I.	WHETHER AIRMAN HOWARD'S DISOBEYING ORDERS AND DERELICTION OF DUTY CONVICTIONS ARE FACTUALLY INSUFFICIENT AND TWO OF HIS DERELICTION OF DUTY CONVICTIONS ARE LEGALLY INSUFFICIENT.	1
II.	WHETHER THE MILITARY JUDGE ERRED WHEN SHE REFUSED TO INSTRUCT ON LACK OF MENTAL RESPONSIBILITY.	1
III.	WHETHER THE MILITARY JUDGE ABUSED HER DISCRETION WHEN SHE DENIED CHALLENGES FOR CAUSE AGAINST TWO PANEL MEMBERS WHO QUESTIONED THE CENTRAL DEFENSE OF LACK OF MENTAL RESPONSIBILITY.	1
IV.	WHETHER THE RECORD OF TRIAL'S OMISSION OF COURT MEMBER SELECTION SHEETS REQUIRES RELIEF OR, AT A MINIMUM, REMAND FOR CORRECTION.	1
V.	WHETHER AIRMAN HOWARD IS ENTITLED TO SENTENCE RELIEF BECAUSE OF THE 223-DAY DELAY BETWEEN ANNOUNCEMENT OF THE SENTENCE AND DOCKETING WITH THIS COURT.	1
VI.	WHETHER, AS APPLIED TO AIRMAN HOWARD, 18 U.S.C. § 922 IS UNCONSTITUTIONAL BECAUSE THE GOVERNMENT CANNOT DEMONSTRATE THAT BARRING HIS POSSESSION OF FIREARMS IS "CONSISTENT WITH THE NATION'S HISTORICAL TRADITION OF FIREARM REGULATION."	1
VII.	WHETHER AIRMAN HOWARD'S ASSAULT AND INSUBORDINATE CONDUCT CONVICTIONS ARE LEGALLY SUFFICIENT.	1
Statement of the Case		1
Statement of Facts		2
Background		2

Table of Authorities

Cases: **Page(s)**

United States v. Howard,
No. ACM 40478, 2024 CCA LEXIS 137 (A.F. Ct. Crim. App. 9 Apr. 2024) 2

Statutes:

10 U.S.C. § 889 (2018) 1
10 U.S.C. § 890 (2018) 2
10 U.S.C. § 891 (2018) 2
10 U.S.C. § 892 (2018) 2

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS:

Assignments of Error

I.
WHETHER AIRMAN HOWARD'S DISOBEYING ORDERS AND DERELICTION OF DUTY CONVICTIONS ARE FACTUALLY INSUFFICIENT AND TWO OF HIS DERELICTION OF DUTY CONVICTIONS ARE LEGALLY INSUFFICIENT.

II.
WHETHER THE MILITARY JUDGE ERRED WHEN SHE REFUSED TO INSTRUCT ON LACK OF MENTAL RESPONSIBILITY.

III.
WHETHER THE MILITARY JUDGE ABUSED HER DISCRETION WHEN SHE DENIED CHALLENGES FOR CAUSE AGAINST TWO PANEL MEMBERS WHO QUESTIONED THE CENTRAL DEFENSE OF LACK OF MENTAL RESPONSIBILITY.

IV.
WHETHER THE RECORD OF TRIAL'S OMISSION OF COURT MEMBER SELECTION SHEETS REQUIRES RELIEF OR, AT A MINIMUM, REMAND FOR CORRECTION.

V.
WHETHER AIRMAN HOWARD IS ENTITLED TO SENTENCE RELIEF BECAUSE OF THE 223-DAY DELAY BETWEEN ANNOUNCEMENT OF THE SENTENCE AND DOCKETING WITH THIS COURT.

VI.
WHETHER, AS APPLIED TO AIRMAN HOWARD, 18 U.S.C. § 922 IS UNCONSTITUTIONAL BECAUSE THE GOVERNMENT CANNOT DEMONSTRATE THAT BARRING HIS POSSESSION OF FIREARMS IS "CONSISTENT WITH THE NATION'S HISTORICAL TRADITION OF FIREARM REGULATION."

VII.
WHETHER AIRMAN HOWARD'S ASSAULT AND INSUBORDINATE CONDUCT CONVICTIONS ARE LEGALLY SUFFICIENT.

Statement of the Case

On 7 September and 24-28 October 2022, at Misawa Air Base (AB), Japan, a panel of officer and enlisted members sitting as a general court-martial found Airman (Amn) Brian D. Howard guilty, contrary to his pleas, of: (1) one specification of assault of a superior commissioned officer, in violation of Article 89, Uniform Code of Military Justice (UCMJ), 10

U.S.C. § 889 (2018)[1]; (2) one specification of willfully disobeying a superior commissioned officer, in violation of Article 90, UCMJ, 10 U.S.C. § 890 (2018); (3) one specification of insubordinate conduct toward a noncommissioned officer, in violation of Article 91, UCMJ, 10 U.S.C. § 891 (2018); and (4) three specifications of dereliction of duty (one negligent and two willful), in violation of Article 92, UCMJ, 10 U.S.C. § 892 (2018). (R. at 57, 858–59; Entry of Judgment (EOJ).)

The panel members sentenced Amn Howard to 6 years' confinement, forfeiture of all pay and allowances, reduction to the grade of E-1, and a dishonorable discharge. (R. at 932; EOJ.) The convening authority took no action on the findings and the sentence. (Convening Authority Decision on Action.)

On 9 April 2024, this Court remanded the case due to missing portions of the verbatim transcript and missing Preliminary Hearing Officer (PHO) exhibits. *United States v. Howard*, No. ACM 40478, 2024 CCA LEXIS 137 (A.F. Ct. Crim. App. 9 Apr. 2024) (unpublished).

Statement of Facts

Background

Amn Howard grew up with the Air Force. (Def. Ex. E at 1.) Both his parents were Airmen, and thus he lived the experience of the military child: moving to New Jersey, Lajes Field, Panama, and Germany. (*Id.* at 1–2.) He joined the Air Force later than most, after a career in medical services and patient care. (*Id.* at 2.) He was excited that his first assignment was overseas at Misawa AB, and that he was stationed with his friend from basic training and technical school, Senior Airman (SrA) DC. (*Id.*)

Yet Amn Howard experienced significant mental health issues while at Misawa AB. Several members of Amn Howard's unit brought their concerns about his mental health to CT, his squadron commander. (R. at 432–33.) Amn Howard's reported behavior, such as speaking to himself when nobody else was around, led CT to order two command-directed evaluations (CDEs). (R. at 433.)

[1] All references to the punitive articles are provided by year. Unless noted otherwise, all references to the UCMJ and the Rules for Courts-Martial (R.C.M.) are to the versions in the Manual for Courts-Martial, United States (2019 ed.) [MCM].

Lt Col EG, a clinical psychologist then at Misawa AB, evaluated Amn Howard in early 2021. (*See* R. at 708, 723.) She explained that, for the military, Amn Howard's "grooming was not what [she] would've expected." (R. at 718.) When he arrived, "he's like jumping down the hallway, running and speeding in after me, and super excited, and super pleasant, and super happy, and talking very fast and pressured, and so, there you see that obviously the pressured speech, the psychomotor agitation, and the high energy." (*Id.*)

Certificate of Filing and Service

I certify that the original and copies of the foregoing were sent via email to the Court and served on the Government Trial and Appellate Operations Division on 29 September 2024.

MATTHEW L. BLYTH, Maj, USAFR
Appellate Defense Counsel
Air Force Appellate Defense Division
1500 West Perimeter Road, Suite 1100
Joint Base Andrews NAF, MD 20762
(240) 612-4770